TuWa

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Terms of Service

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Welcome to TUWA! These Terms of Service ("Terms") govern your access to and use of the websites located at tuwa.io, demo.tuwa.io and custom-style.tuwa.io, the documentation at docs.tuwa.io, the project documentation sites on subdomains of docs.tuwa.io and stories.tuwa.io, the Quasar dashboard located at quasar.tuwa.io, our open-source npm packages (Orbit Utils, SIWX, Satellite Connect, Pulsar, Nova UI Kit, the TUWA SDK and the Quasar SDK) and Quasar Community Edition (collectively, the "Ecosystem"), provided by FOP Tkach Oleksandr. By accessing the Ecosystem, you agree to be bound by these Terms.

1. Open Source Software & SaaS Cloud

Our npm packages (Orbit Utils, SIWX, Satellite Connect, Pulsar, Nova UI Kit, the TUWA SDK and the Quasar SDK) are open source and licensed under the Apache 2.0 License. Quasar Cloud is our managed cloud service: API endpoints, transaction synchronization, quota and the dashboard. Quasar Community Edition is the open-source (Apache 2.0) edition of Quasar that you run on your own infrastructure; you operate and are responsible for any deployment you run.

Quasar Cloud is for businesses only. We offer Quasar Cloud, including its quota, only to businesses: companies and other organizations, and individuals acting for their trade, business, craft or profession. By creating an organization in Quasar Cloud, you confirm either that you use Quasar Cloud for your own trade, business, craft or profession, or that you represent a company or other organization and are authorized to enter into these Terms on its behalf. We do not offer Quasar Cloud to consumers. Our open-source software, the documentation and our other sites remain available to everyone.

Sanctions. You may not use Quasar Cloud if you, or the organization you act for, are subject to sanctions of Ukraine, the European Union, the United States, the United Kingdom or the United Nations, or if your use of Quasar Cloud would breach such sanctions. We may suspend or close access that breaks this rule.

2. "As Is" and "As Available"

The Sites, Quasar, and the Software are provided on an "AS IS" and "AS AVAILABLE" basis, without any warranties of any kind, either express or implied, including, but not limited to, implied warranties of merchantability, fitness for a particular purpose, or non-infringement, to the extent permitted by applicable law. You use them at your sole risk.

3. Assumption of Risk

You acknowledge and agree that you are solely responsible for your use of the Ecosystem. You understand the inherent risks associated with cryptographic systems, blockchain-based software, decentralized networks (EVM, Solana, etc.), and smart contracts. We are not responsible for lost funds, compromised keys, or transaction failures, to the extent permitted by applicable law.

4. Third-Party Services and Links

The Ecosystem may utilize or integrate with third-party Web3 infrastructure (e.g., RPC providers, external wallets, analytics). We assume no responsibility for the uptime, security, or practices of any such third-party services, to the extent permitted by applicable law.

5. Account & Billing

Quasar Cloud is in public beta and free of charge. Each organization receives 1,000 free quota units when it is created, and quota cannot be bought. During the beta, features, limits and the free units may change, and the service may be interrupted. Before paid quota becomes available, we will publish the terms of purchase, payment and refunds, and buying will require the billing details of the business you buy for. You are responsible for safeguarding your SIWX sessions and

Quasar API credentials. Where Quasar Cloud processes personal data on behalf of your organization, our Data Processing Addendum applies and forms part of these Terms.

Changes and the end of the beta. We will tell the owners of your organization by email at least 30 days before we end the beta, end the free quota, or make a change that materially reduces what Quasar Cloud does for your organization. A change needed for security, to stop abuse or to comply with the law may take effect sooner; we then tell you as soon as we can. When the beta ends, you may continue under the terms we publish for Quasar Cloud at that time, or stop using it.

Closing access. You may delete an app, an organization or your account in the Quasar dashboard. We may suspend or close access that breaks these Terms or the law, or that puts Quasar Cloud or its other users at risk; unless the law or that risk prevents it, we tell you first and explain why.

When the service ends. The service ends for your organization on the date we give in the notice of the end of the beta or of a closing of access, which is at least 30 days after the notice unless we close access for a breach of these Terms or the law; it also ends when an owner deletes the organization. Until the end date, an owner can export the organization in the Quasar dashboard, with its apps, API keys, webhook settings and transaction history, and import it into a Quasar Community Edition node. If access is closed without that notice, an owner can ask us at admin@tuwa.io within 30 days after the closing and we send the export file. We delete the data of the organization 30 days after the end date, as described in Section 10 of the Data Processing Addendum, and earlier when an owner deletes it. We do not hand over an export where the law or the sanctions rule in Section 1 forbids it.

6. Limitation of Liability

To the fullest extent permitted by applicable law:

- **Indirect damages.** We are not liable for any indirect, incidental, special or consequential damages, or for any loss of profits, revenue, data or business, arising out of or relating to your use of the Ecosystem.
- **Direct damages.** Our total liability for direct damages arising out of or relating to the Ecosystem is limited to the amount you paid us for Quasar Cloud in the 12 months before the event giving rise to the claim, or USD 100 if you paid us nothing.

These limits do not apply to liability for an intentional breach of our obligations or for gross negligence, to liability for death or personal injury, or to any other liability that applicable law, including consumer protection law, does not permit us to exclude or limit. Nothing in these Terms limits liability or remedies that applicable law does not permit us to limit.

7. Governing Law

These Terms shall be governed by and construed in accordance with the laws of Ukraine, without regard to its conflict of law provisions. This does not deprive a consumer of protections that cannot be waived under applicable law.

8. Changes to These Terms

We may change these Terms. Before a material change takes effect, we tell the owners of Quasar Cloud organizations by email at least 30 days in advance and publish the new version here; the date of the current version is at the top. If you do not agree to a change, you may stop using Quasar Cloud and export your data as described in Section 5.

9. Contact Information

If you have any questions or legal inquiries regarding these Terms, please contact us at admin@tuwa.io. To report a security vulnerability, follow our Security Policy and email security@tuwa.io.